

HOUSE No. 5282

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 23, 2026.

The committee on Education, to whom was referred the petition (accompanied by bill, House, No. 542) of Marjorie C. Decker and Sal N. DiDomenico for legislation to expand access to family, friend, and neighbor-provided childcare administered by the Department of Early Education and Care, reports recommending that the accompanying bill (House, No. 5282) ought to pass.

For the committee,

KENNETH I. GORDON.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act expanding access to family, friend, and neighbor-provided childcare.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1A of Chapter 15D, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting the following definitions:--

3 “Family, Friend and Neighbor Care” or “FFN Care” means child care which is exempt
4 from licensure by the department because the individual caregiver either provides care in the
5 child’s own home or is a relative of the child, other than family child care home care.

6 “FFN Caregiver” means a person providing FFN Care.

7 SECTION 2. Section 2 of said chapter 15D, as so appearing, is hereby amended by
8 inserting after subsection (u) the following subsections:--

9 (v) in addition to the department’s obligations under subsection (e), establish a payment
10 structure for FFN caregivers that (1) ensures families with child care vouchers, or other available
11 funding mechanisms, have full use of the daily value of such vouchers or other mechanisms; (2)
12 is based on payment at an hourly rate; and (3) provides for a minimum hourly rate of

13 compensation for FFN caregivers that is equal or greater to the minimum hourly wage required
14 by section 1 of chapter 151. A public hearing under chapter 30A and the approval of the board
15 shall be required before the establishment or revision of the payment structure;

16 SECTION 3. Section 7 of said chapter 15D, as so appearing, is hereby amended in
17 subsection (d) by inserting after the word “approve” the following words:-

18 A FNN Caregiver,

19 SECTION 4. Section 7 of said chapter 15D, as so appearing, is hereby further amended in
20 subsection (d) by inserting the following sentence:-

21 The FNN Caregiver will have obtained the necessary licensing pursuant to section 7 of
22 chapter 15D, in the absence of said license the compensation will revert back to the original
23 payment.

24 SECTION 5.

25 (1) The department shall, within 60 days of the passage of this act, convene a state
26 advisory committee on FFN Care, the members of which shall represent a reasonable geographic
27 balance and shall reflect the diversity of the commonwealth in race, ethnicity, gender and sexual
28 orientation. Members of the advisory committee shall, at minimum, include one person from
29 each of the following organizations, or their successor organizations, if applicable: Care That
30 Works, Inc., New England United for Justice; Service Employees International Union Local 509;
31 the Child Care Resource and Referral Network; and three or more FFN caregivers chosen by the
32 commissioner.

(2) Additional committee members may also be recommended by the commissioner and appointed by the board. All appointees shall have special expertise, experience or interest in FFN care and shall represent a mix of representatives of the FFN community, the civic, labor, and business communities, academics, parents, teachers, social service providers, and health care providers.

(3) Members of the committee shall not, by virtue of their membership, be considered state employees under chapter 268A. The members of the committee shall serve without compensation but may be reimbursed, subject to appropriation, for expenses necessarily and reasonably incurred in the performance of their responsibilities. Members shall be appointed for a 1 year period, after which the committee shall be disbanded by the department.

(4) The committee shall hold at least 4 public hearings and 4 public meetings in its first year of establishment to collect information on, discuss, and consider the following with respect to FFN care:

a. Ensure adequate representation of FFN care in the department's governance and decision-making;

b. Ensuring adequate resources for FFN care including but not limited to regional child care resource and referral agencies for program administration and supportive services;

c. Accessible application process timelines and requirements for reimbursement of FFN care;

d. Models to extend reimbursable voucher hours for children to access formal group programs, even if also using the voucher for off-hour care with FFN caregivers;

e. Adjusting existing resource programs to be relevant to and accessible to FFN caregivers and creating new resources and programs as needed to address needs and challenges unique to FFN caregivers;

f. Goals, objectives, and reporting requirements pertaining to FFN caregivers for inclusion in the department's next 5-year strategic action plan;

g. Definitions and indicators of quality appropriate to FFN care and culturally responsive approaches to quality improvement for FFN caregivers;

h. Inclusion of FFN care in career ladder and workforce development frameworks and programs;

i. Effective outreach and communication practices to inform the public about FFN care, requirements, and resources;

j. Legislative and regulatory amendments to further support FFN care in the Commonwealth; and

k. Department structures, representation and expertise required to effectively implement and oversee and evaluate changes recommended by the committee relative to FFN care.

(5) The advisory committee shall file a report with the commissioner which shall be forwarded to the clerks of the house and the senate, and the chairs of the house and senate committees on ways and means, and the joint committee on education, with respect to the committee's findings on the issues considered under subsection 4.